



United States Department of the Interior

INTERIOR BUSINESS CENTER
Washington, DC 20240

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION AUTHORITY: RFO 12.201-1, SIMPLIFIED PROCEDURES 41 U.S.C. 1901

SOL # 140D0426Q0306

Pursuant to the Competition in Contracting Act (CICA), as implemented by RFO Part 6 Competition Requirements and the justification and approval requirements outlined in RFO 12.102 and 6.104, the contracting officer is authorized to use a statutory exception. In accordance with this authorization, and consistent with the Revolutionary FAR Overhaul (RFO) updates, the acquisition may proceed under simplified procedures for the procurement of commercial items per RFO 12.201-1. The authority for this streamlined approach is supported by the following facts and rationale:

1. Identification of the agency and the contracting activity, and specific identification of the document as a "Justification for other than full and open competition."

This document is a justification for other than full and open competition for the U.S. Department of the Interior (DOI), Interior Business Center (IBC), Acquisition Services Directorate (AQD), Division II Branch II on behalf of U.S. Department of Health and Human Services (HHS), National Institutes of Health (NIH), National Cancer Institute (NCI), Center for Cancer Research (CCR).

2. Nature and/or description of the action being approved.

Maintenance and Service contract for various Government-owned Illumina sequencers and equipment. CCR requires maintenance and service support for eleven (11) government-owned Illumina sequencers which are used extensively in support of ongoing cancer research and patient care.

Maintenance and Service contract for the following government-owned Illumina sequencers:

Name and address of proposed contractor:

Illumina, Inc
5200 Illumina Way
San Diego CA 92122-4616.

3. A description of the supplies or services required to meet the agency's needs (including the estimated value).

The Contractor shall provide all labor, material, and equipment necessary to maintain and provide preventive maintenance for the Illumina sequencers listed above and their associated system components such as autoloaders, lasers, and other items.

- **Proposed contract type:** Firm Fixed Price
- **Total Estimated Dollar Value:** [REDACTED]
- **Period of Performance:** The period of performance is a 12-month base and one 12-month Option Period, utilizing FAR 52.217-9.

4. An Identification of the statutory authority permitting other than full and open competition.

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5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires using the authority cited.

Illumina, Inc. is the sole manufacturer and original equipment manufacturer (OEM) service provider for Illumina sequencing platforms, including but not limited to the NextSeq, MiSeq and related ancillary systems. These instruments are used daily within CCR core facilities to process and analyze clinical and research samples derived from human and animal studies across NCI.

Illumina is the only provider authorized to deliver OEM-certified service, including on-site support by factory-trained and certified field service engineers with full access to proprietary diagnostic tools, software, firmware updates, system configurations, and genuine replacement parts. Illumina does not authorize third-party service providers to perform comprehensive OEM-level maintenance or warranty-covered repairs. As such, Illumina is the only source capable of ensuring full compliance with manufacturer specifications and maintaining system performance to validated standards.

Many of the sequencing systems covered under this requirement are highly configurable and may include custom configurations or upgrades installed specifically to meet NCI research needs. These systems are periodically updated with Illumina hardware and software enhancements that remain under factory warranty. To preserve these warranties and ensure optimal performance, all maintenance and repairs must be performed by Illumina or Illumina-authorized personnel. Use of non-OEM parts, unauthorized service providers, or non-validated software configurations would void applicable warranties and could compromise sequencing accuracy, data integrity, and system reliability.

Illumina-manufactured reagents, flow cells, lasers, imaging components, and instrument-specific consumables are engineered and validated for use exclusively within Illumina sequencing platforms. In the event of component failure, Illumina provides OEM replacement parts that meet factory specifications and maintain validated system performance. Only Illumina-approved components can be installed without voiding warranties and without jeopardizing instrument calibration, run quality metrics, or regulatory compliance requirements.

For these reasons, Illumina, Inc. is uniquely qualified and the only responsible source capable of providing the required maintenance and service support for Illumina sequencing systems in use within CCR facilities.

- 6. A description of efforts made to ensure that offers are solicited from as many potential sources as possible, including whether a notice was or will be publicized as required by part 5 and, if not, which exception under part 5 applies.**

To confirm sources, a Notice of Intent to Sole Source was posted on SAM.gov on April 1, 2026. No responses were received by the April 8, 2026 due date

In accordance with RFO 5 and RFO 12, a combined synopsis and solicitation will be published on SAM.gov

- 7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.**

The contracting officer determines that the anticipated price will be fair and reasonable based on a review of the informal market research quotes provided by the program office, consideration of historical pricing for comparable OEM support across the marketplace (not limited to a single manufacturer), and confirmation that the proposed amounts appropriately account for both the required services and any necessary OEM replacement parts.

- 8. The market research conducted (see Part 10) and the results or a statement of the reason market research was not conducted.**

The fully executed Market research report dated March 30, 2026 was conducted jointly by the Contracting Officer and the program office. Market research included a review of historical data related to past NCI requirements for maintenance services on similar equipment types. This review was supplemented with current pricing information obtained through preliminary informal market research quotes provided by the program office, publicly available pricing data, and standard industry terms and conditions.

Market Research also included an examination of required and recommended sources in accordance with RFO Part 8. No viable sources were identified that could provide the required services for the specific equipment types. To further validate the marketplace, no responses were received by the April 8, 2026 Notice of Intent to sole source due date. In accordance with RFO 5 and RFO 12, a combined synopsis and solicitation will be published on SAM.gov

9. Any other facts supporting using other than full and open competition.

Given the volume and critical nature of the sequencing efforts supported by these facilities, prolonged instrument downtime is not acceptable. Any interruption in service would result in significant delays to ongoing research, potential loss of high-value and often irreplaceable samples, and possible financial harm to the Government due to failed or compromised sequencing runs. Rapid service response is therefore essential to maintain operational continuity and protect research integrity.

10. A listing of the sources, if any, that expressed, an interest in the acquisition in writing.

No responses were received; please see Section 8 for details.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

To remove barriers to competition in future acquisitions, the Contracting Officer will work with the Contracting Officer's Representative to monitor the market, re-assess performance requirements for opportunities to broaden vendor participation, and evaluate options such as refining specifications or seeking additional technical data rights should new sources emerge.

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